

Ref No: VMANBOAJBQ05X

Date 17-July-2025

Business Name: Happy Hour Gas
Email: wawerun@gmail.com
Location: Kagio , Kenya
Tel: 0715821303



Dear Nicholas Waweru

RE: AUTHORIZATION TO SELL PRO GAS AND SEA GAS CYLINDERS AND ACCESSORIES

We confirm that Proto Energy Limited (PEL) has authorized Happy Hour Gas to sell Liquefied Petroleum Gas (LPG) branded as Pro Gas and Sea Gas in 6kg, 13kg and 50kg cylinders (PEL Cylinders) as well as sell LPG related accessories (e.g. grills and burners, etc.) on its behalf for a period of 12 Months with effect from 17-July-2025 to 17-July-2026 (the "Term"). In that regard, PEL mandates and consents to Nicholas Waweru selling Pro Gas and Sea Gas (Cylinders) for the Term subject to and in accordance with the following Terms and Conditions (T&Cs):

1. You **SHALL NOT** under any circumstances trade in illegally refilled PEL Cylinders.
2. You **SHALL NOT** cross-fill or rebrand PEL Cylinders.
3. You **SHALL NOT** engage in the sale of empty PEL Cylinders.
4. You **SHALL NOT** undertake the wholesale distribution of PEL Cylinders without additional written consent by PEL.
5. You **SHALL** at all times display a retail price for PEL Cylinders.
6. You **SHALL** at all times ensure the safety and security of PEL Cylinders.
7. You **SHALL** at all times provide safety instructions to customers about proper handling of LPG and display safety tips provided by PEL in your stores.
8. You **SHALL** allow PEL to make periodical inspections of the PEL Cylinders to confirm compliance with its this T & Cs and PEL's policies.
9. You **SHALL** at all times, during the Term, ensure compliance with the Energy and Petroleum Authority (EPRA) and County Government regulations governing the sale of LPG.
10. You **SHALL** give prior notice to PEL in writing of any intention to market, or promote the Pro Gas and Sea Gas brand
11. This Authorization can be revoked, withdrawn and or cancelled by PEL at any time and at its sole discretion and will be revoked immediately and without notice should you breach any of these T & Cs.

PLEASE NOTE this authorization is valid until 17-July-2026 and shall automatically expire on this date. Unless otherwise renewed by PEL in writing, you shall immediately cease to sell and or otherwise deal with PEL Cylinders. Any continued sale and or dealings with PEL Cylinders after the Expiry date shall be unauthorised and illegal.

For and Behalf of Proto Energy Limited

Tim Jessop

ACKNOWLEDGEMENT AND ACCEPTANCE

I/We acknowledge that I/We have read, understood and agreed on these Terms and Conditions. I/We also declare that the information provided in this document is true and accurate to the best of my/our knowledge.

Name
Cc: EPRA
Cc: County Offices

Designation

Signature